IN THE HIGH COURT OF DELHI AT NEW DELHI

(CRIMINAL APPELLATE JURISDICTION • BENCH OF HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD)

CRL. M.C. 4410/2024 & CRL. M.A. 17290/2024

DATED THIS THE 14TH DAY OF OCTOBER, 2024

BETWEEN:

COURT ON ITS OWN MOTION / IN RE: DIGITAL ARREST CYBER FRAUD SYNDICATES **... PETITIONER**

(By Adv. Siddharth Luthra, Senior Advocate (Court Appointed Amicus Curiae) with Adv. Ayush Kaushik)

AND:

1. UNION OF INDIA, Ministry of Home Affairs (MHA / I4C) **... RESPONDENTS**
2. CENTRAL BUREAU OF INVESTIGATION (CBI), New Delhi
3. TELECOM REGULATORY AUTHORITY OF INDIA (TRAI)
4. RESERVE BANK OF INDIA, Sansad Marg, New Delhi

(By Sri. Kirtiman Singh, CGSC for Union of India / CBI;
Sri. Arjun Mitra, Advocate for TRAI & RBI)

ORDER & JUDGMENT

1. This Court takes judicial cognizance of an alarming and insidious cyber extortion racket prevalent across the country commonly designated as 'Digital Arrest', wherein criminal syndicates simulate courtroom proceedings, police stations, and CBI interrogations over Skype and WhatsApp video calls to coerce citizens into liquidating their savings.

2. We explicitly declare that neither the Code of Criminal Procedure, 1973 nor the Bharatiya Nagarik Suraksha Sanhita, 2023 recognizes any process or concept known as 'Digital Arrest'. No law enforcement agency in India has legal sanction to confine, interrogate, or restrain any individual over digital communication channels without physical custody and statutory notice under Section 41A CrPC / Section 35 BNSS.

3. Any simulated confinement over video or electronic medium constitutes aggravated extortion and kidnapping under the Indian Penal Code / Bharatiya Nyaya Sanhita, 2023.

4. Turning to victim restitution: Where extorted funds are trapped and frozen in mule accounts under Section 102 CrPC, Magistrates across the National Capital Territory are directed to dispose of applications filed under Section 457 CrPC within 14 days, ordering immediate restitution to verified victims upon execution of indemnity bonds without compelling them to await final trial conclusion.

5. Investigating agencies and commercial banks are mandated to strictly observe the 90-day sunset rule: if no formal complaint or charge-sheet is instituted within 90 days, automated portal freezes placed on Layer 3–6 merchant accounts must be systematically unblocked.

OPERATIVE DIRECTIONS

(i) Mandatory Standard Operating Procedure (SOP) is hereby promulgated for all Cyber Crime Police units and financial intermediaries.

(ii) Telecom Service Providers (TSPs) and VoIP intermediaries are directed to block international calls spoofed with Indian (+91) calling prefixes.

(iii) Subordinate courts are directed to expedite Section 457 CrPC refund petitions for cyber fraud victims within two weeks of police lien confirmation.

CERTIFIED TRUE COPY
High Court of Karnataka / Registry
Copy Application No: CA-28912/2024
Examined by: Superintendent (Judicial)

Sd/-
REGISTRAR (JUDICIAL)
HIGH COURT OF RECORD
Seal Affixed on Date of Pronouncement